MUWANIKWA KAHARI

versus

DETECTIVE PATSON MUCHINGAMI

AND

OFFICER IN CHARGE, C.I.D HOMICIDE SQUAD, BULAWAYO CENTRAL POLICE STATION NO.

AND

COMMISSIONER GENERAL OF POLICE NO.

AND

MINISTER OF HOME AFFAIRS AND CULTURAL HERITAGE NO

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 7 NOVEMBER & 9 DECEMBER 2025

Chamber application

Ms P Dube, for the applicant
S Jukwa, for the respondents

NDUNA J: The present proceedings arise from the applicant's failure to note an appeal within the prescribed 21-day period following the Magistrate's ruling. The applicant now seeks condonation for the late filing of his notice of appeal.

FACTUAL BACKGROUND

This matter arises from allegations of unlawful assault perpetrated by members of the Zimbabwe Republic Police against the applicant, Muwanikwa Kahari, during the period 4 to 6 October 2024. The alleged assaults took place at the CID Homicide offices in Bulawayo and subsequently at the holding cells of Bulawayo Central Police Station, following the applicant's being summoned for questioning in connection with a robbery investigation.

On 4 October 2024, the applicant was at his workplace, Safeguard Security, when he was allegedly approached by police officers who requested that he accompany them to the CID Homicide offices to assist with investigations relating to a robbery that had occurred at Ecobank, Fife Street. The applicant voluntarily complied with the request and was taken in for questioning.

Upon arrival at the CID offices, the applicant states he was interrogated about the robbery. During the interrogation, he alleges that he was subjected to repeated and severe assaults by four police officers whose identities were unknown to him. The assaults were allegedly carried out using a broken wooden table leg, with blows inflicted on his buttocks, lower limbs and feet while he was made to lie either on a wooden bench or on the floor. The applicant avers he was detained overnight on 4 and 5 October 2024.

On 6 October 2024, the applicant was allegedly further assaulted by the 1st respondent, using the same wooden table leg. Thereafter, the applicant was released but was ordered to report daily to the police station for several days. During this period, he was allegedly detained from 8:00 a.m. to 4:30 p.m. each day without any charges being preferred against him.

As a result of the alleged assaults, the applicant sustained serious injuries, including a fractured metatarsal in his left foot, as well as bruising and swelling to his buttocks and lower limbs. His injuries impaired his mobility, necessitating the use of crutches and medical treatment, including an operation at United Bulawayo Hospitals between 23 and 25 November 2024. The applicant reported the assaults at Bulawayo Central Police Station under reference number IR7392/24.

Magistrates' Court Proceedings (BYOCC1234/25)

The applicant commenced civil proceedings for damages by summons issued on 15 May 2025, claiming a total of US$12,000.00, made up as follows:

- US$2,000.00 for past medical expenses,
- US$6,000.00 for pain and suffering, and
- US$4,000.00 for loss of amenities and disfigurement.

Service of summons was effected on the respondents between 20 and 23 May 2025.

On 3 June 2025, the respondents entered appearance to defend and subsequently filed a Special Plea, contending that the applicant had failed to give "adequate notice" in terms of section 6(1) of the State Liabilities Act, which requires that at least 60 days' written notice be given prior to the institution of legal proceedings against the state.

The applicant avers that the Special Plea did not specify in what respect the notice was allegedly inadequate, nor did it expressly articulate the relief sought. On 11 June 2025, the applicant filed a response wherein he contended that the Special Plea was vague and embarrassing and ought to be struck out. In the alternative, the applicant sought condonation in terms of section 6(3) of the State Liabilities Act, arguing that there had been substantial compliance with the statutory requirements and that the respondents had suffered no prejudice.

The Special Plea was heard on 18 June 2025 before the trial Magistrate who reserved judgment. Although the ruling was dated 7 July 2025, it was only released to the applicant's legal practitioners on 30 July 2025, following several follow-ups. In the ruling, the Magistrate upheld the Special Plea and declared the applicant's summons a legal nullity on the basis that they had been issued before the expiry of the 60-day notice period. The matter was consequently removed from the roll.

The applicant now seeks condonation for the late filing of his notice of appeal.

The applicant explains that although the ruling was dated 7 July 2025, it was only uplifted on 30 July 2025 after repeated follow-ups, during which time he was informed that the Magistrate was on leave. On 31 July 2025, the applicant requested the transcribed record of proceedings in order to prepare comprehensive grounds of appeal. The record, although date-stamped 26 August 2025, was only released on 1 September 2025. The present application for condonation was eventually filed on 16 September 2025.

The applicant contends that he has strong prospects of success on appeal, arguing that the Magistrate erred in upholding a vague and defective Special Plea, in relying on submissions raised for the first time in the respondents' heads of argument, and in failing to consider condonation under section 6(3) despite substantial compliance and the absence of prejudice.

The respondents oppose the application, asserting that the delay is excessive and inadequately explained. They further contend that the intended appeal lacks prospects of success on the basis that the 60-day notice requirement under section 6(1) is peremptory, and that non-compliance renders the summons a nullity.

ISSUE FOR DETERMINATION

1. Whether, in the exercise of this Court's discretion, condonation for the late noting of the appeal ought to be granted or refused.

APPLICATION OF THE LAW

The principles governing applications for condonation are well settled. In *Friendship v Cargo Carriers Limited,* SC 1/13 pp4 the court laid down the criteria to be considered in the exercise of its discretion, being:

> "The extent of the delay and the reasonableness of the explanation therefor, the prospects of success on appeal, the interest of the court in the finality of judgments and the prejudice to the party who is unable to execute his judgment."

Turning to the matter at hand, the ruling sought to be appealed against was dated 7 July 2025 but was only made available to the applicant on 30 July 2025, following repeated follow-ups during which the Magistrate was said to be on leave. Immediately thereafter, on 31 July 2025, the applicant requested the transcribed record of proceedings in order to prepare proper grounds of appeal. The record, although date-stamped 26 August 2025, was only released on 1 September 2025. The present condonation application was then filed on 16 September 2025.

The delay complained of is therefore largely attributable to administrative processes outside the direct control of the applicant. The chronology demonstrates that the applicant acted with reasonable diligence once the ruling and the record became available. There is no indication of willful disregard of the rules or a deliberate intention to delay the matter. The explanation proffered is, in this court's view, logical, coherent and reasonable in the circumstances. The delay, though present, cannot be said to be inordinate or *mala fide*.

The issue of prospects of success is central to this application. The applicant's intended appeal arises from the Magistrate's ruling upholding a Special Plea based on alleged non-compliance with section 6(1) of the State Liabilities Act. That provision reads as follows:

> *"No civil proceedings shall be instituted against the State or any person for anything done or omitted to be done in pursuance or execution of any law unless at least sixty days' notice in writing of the intention to institute such proceedings has been served upon the Minister or upon such person."*

The courts have consistently held that compliance with this section is peremptory and not merely directory. In *Tinashe Bvongadza v ZIMRA HB* 145/24, where the notice requirement was not complied with, the court held:

> "The applicant, it has already been observed, failed to comply with the requisite 60-days notice. He should have served the same upon the respondent. He served none upon the respondent which, on the strength of the observed failure, insists that the application is fatally defective."

Similarly, in *Care International Zimbabwe v ZIMRA SC 76/2017*, the Supreme Court stated:

> *"*Applicant's failure to give the notice was fatal. There is therefore no proper application before the court and, upholding this point *in limine* means that the court cannot proceed to anything else*."*

In the present matter, it is common cause that the applicant issued summons before the expiry of the 60-day statutory notice period. On the authority of the above cases, such non-compliance renders the proceedings fatally defective from inception. The Magistrate was therefore correct in holding that the summons were a nullity.

While the applicant contends that the Special Plea was vague and that the court *a quo* ought to have considered condonation in terms of section 6(3) of the State Liabilities Act, the mere exchange of correspondence or the writing of letters prior to litigation does not, in law, amount to a formal notice of intention to institute legal proceedings as envisaged by section 6(1). It has been stated repeatedly by the courts that non-compliance with section 6(1) is fatal. The clear purpose of the statutory notice requirement is to afford the state adequate time to investigate the claim and assess its exposure after a formal and unequivocal notice of intention to

sue has been served. Failure to adhere to this peremptory statutory requirement renders the proceedings before the court a nullity *ab initio*.

In light of Section 6 of the State Liabilities Act, this court is unable to find that the applicant enjoys any real or reasonable prospects of success on appeal. The intended appeal is devoid of merit. The application is therefore refused on this ground.

ORDER

1. The Application for Condonation for late noting of an appeal be and is hereby dismissed.
2. The applicant shall bear the costs of this application on ordinary scale

Zimbabwe Lawyers for Human Rights, applicant's legal practitioners
Civil Division of The Attorney General, respondent's legal practitioners